

25LBCV00131 25LBCV00131

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-27

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Case Number: 25LBCV00131 Hearing Date: August 27, 2026 Dept: S27

1. Background Facts

Plaintiff, Jesse Sanchez filed this action against Defendants, Culiacan Appliances and Edwin Rivera for damages arising out of alleged wage and hour violations and other employment claims on 1/21/25. Plaintiff filed his operative Second Amended Complaint on 8/12/25. He filed proof of service of the summons, complaint, and related papers on Defendants on 9/11/25, and the Clerk, at Plaintiff's request, entered Defendants' defaults on 10/31/25.

The Court heard and OSC re: default packet on 12/10/25, at which time it indicated it had received the default packet and was setting a default prove-up hearing for 1/30/26. Plaintiff appeared on 1/30/26, but had failed to serve a statement of damages on Defendants, which caused the Court to

continue the matter to 3/27/26. Plaintiff filed declarations re: non-service on 3/27/26, and the Court dismissed the action the same day.

2. Motion to Vacate Dismissal

a. Relief Sought by Plaintiff

On 6/12/26, Plaintiff filed this motion to vacate the dismissal, contending it was entered as a result of his attorney's mistake or excusable neglect in failing to timely assign the matter to a process server and ensure the statements of damages were served prior to the 3/27/26 hearing. The motion is granted.

The dismissal was entered without any statutory or other authority for dismissing the action. CCP §583.420(a)(1) permits the Court to dismiss an action if the summons and complaint are not served within two years after the action is filed. §583.410 also permits the Court to dismiss an action if the case is not brought to trial within two years after filing. There are various other statutes that permit dismissal of an action, none of which apply here. Pursuant to *Lyons v. Wickhorst* (1986) 42 Cal.3d 911, 915-917, the Court's powers to dismiss absent a statutory basis are extremely limited, and can only be applied in sham actions or where a delay of less than the statutory period has been prejudicial to the other party. Because the dismissal was entered without statutory or other basis, it is void and the Court vacates the dismissal.

b. Future Hearings

Plaintiff has not, to date, filed proof of service of the statements of damages on Defendants. The Court sets an OSC re: proof of service and default prove-up hearing for September 18, 2026, 8:30 a.m. in Department 28.

Plaintiff is ordered to give notice.